

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 7, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**EBONEE S MARTIN; ET AL. vs. RONALD BRAZELL; ET AL.
Case No. CU23-00315**

Motion to be Relieved as Counsel

TENTATIVE RULING

The parties are to appear. At the hearing, the Court's tentative ruling is to grant the motion by Plaintiff's counsel to withdraw.

**SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346**

Plaintiff's Motion to Compel

TENTATIVE RULING

Parties to appear.

**LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS, LLC
Case No. CU23-03523**

Motion for Attorneys' Fees

TENTATIVE RULING

Motion to Tax Costs

Defendant's motion to tax costs is denied in part and granted in part.

Items in a memorandum of costs are prima facie evidence of their propriety if they appear on their face to be appropriate charges. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) The burden is on the party seeking to strike or tax costs to show that the items were not reasonable or necessary. (*Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380; *Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774.) A party seeking to strike or tax costs must submit evidence demonstrating that the costs were either unnecessary or unreasonable. (*Jones*, 63 Cal.App.4th at 1266; *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113.)

Defendant has not met its burden of demonstrating that the costs claimed for filing fees and service of process fees were not reasonable or necessary. Plaintiff prevailed on both discovery motions for which filing fees are sought and both motions were necessitated by Defendant's attempt to unilaterally narrow the scope of Plaintiff's claims. Service of process fees are explicitly authorized by statute (Code Civ. Proc. § 1033.5(a)(4)) and Defendant presents no evidence to suggest that the fees were not actually incurred or unnecessary to the conduct of the litigation. The Defendant's motion to tax filing fees and service of process fees is denied.

Mediation fees may be awarded in the court's discretion. (*Berkeley Cement Inc. v. Regents of University of California* (2019) 30 Cal.App.5th 1133, 1140. Where Plaintiffs in Song Beverly cases benefit greatly from mediation resulting in a high number of settlements, the Court finds that it is appropriate for the Parties to equally share the costs of mediation. As such, Defendant's motion to tax the costs of mediation is granted.

Motion for Attorneys' Fees

Plaintiff's motion for attorneys' fees is granted in part. Plaintiff is awarded attorneys' fees in the amount of \$18,505.

Specifically, the Court reduces the hourly rates and taxes the number of hours spent as set forth below:

1. Attorney Wood:
 - (a) 3.8 hours from the 6.8 hours to draft a motion to compel further responses for requests for production.
 - (b) 4.9 hours from 7.9 hours to draft a motion to compel the deposition of Defendant's PMQ.
 - (c) 1.1 hours to draft the motion for attorneys fees.

(d) .9 hours auditing billing records in preparation for the motion.

Total hours stricken = 10.7 hours.

The Court awards an additional 2 hours for preparation of reply briefing.

Net reduction in hours = 8.7 hours.

The Court finds a reasonable hourly billing rate for Attorney Wood at \$450 per hour.

Attorney Wood's claimed hours	=	41.7
less hours stricken	=	-8.7

33 hours at \$450 = \$14,850

2. Attorney Anvar:	.3 hours x \$450 = \$135
3. Attorney Walker:	2.7 hours x \$300 = \$810
4. Attorney Schwartz:	1.3 hours x \$400 = \$520
5. Attorney Figura:	.8 hours x 350 = \$280
6. Paralegal:	19.1 hours x \$100 = \$1,910

TOTAL (2) – (6) = \$3655

TOTAL ATTORNEY FEES: \$18,505

The motion is timely. Judgment or dismissal has not been entered in this action and no notice of entry of judgment or dismissal has been served, either by the clerk or by a party. Notice of **conditional** settlement was filed on July 10, 2025, which specified that Plaintiff had to file a request for dismissal by January 10, 2026. No dismissal was filed and no party showed good cause why the case should not be dismissed.

Consequently, the clock to file a motion for attorneys' fees began to run on January 10, 2026. (Cal. Rules of Court, rule 3.1385(c)(2); *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644, 649-650.) The motion was filed on May 14, 2026, well before 180 days from the date of the dismissal.

No multiplier is awarded. The Court finds nothing novel, difficult, or out of the ordinary about the present case. Similarly, the Court does not find exceptional skill or exceptional results that would warrant a multiplier.

BROOK TERRELL vs. HEATHER DUKE; ET AL.
Case No. CU24-05460

JAMESON Defendants' Demurrer and Motion to Strike First Amended Complaint

TENTATIVE RULING